

CLASS JUSTIFICATION AND APPROVAL FOR
OTHER THAN FULL AND OPEN COMPETITION
FOR ONLY ONE RESPONSIBLE SOURCE

1. Contracting Activity:

Department of the Navy, Naval Facilities Engineering Command, Pacific, Pearl Harbor, Hawaii.

2. Description of Action Being Approved:

Solicitations for various projects will specify brand name Knox Box first responder's high-security key lock box and Knox padlock, for projects for Marine Corps Base Guam (MCBG), which will not provide for full and open competition. The use of the above brand-name items are essential to the Government's requirements, thereby precluding consideration of a product manufactured by another company. Authority to act under this class justification expires on 31 March 2025.

3. Description of Supplies/Services:

Throughout the MCBG build-up on Guam, hundreds of building systems and facilities will be constructed, resulting in the acquisition of many similar components that are common across each facility. The Knox Box first responder's high-security key lock box and padlock will be one of those common components. As part of this build-up, it is estimated that 117 Knox Box first responder's high-security key lock boxes and 69 Knox padlocks will be installed. A list of projected projects that will utilize this equipment is provided in Attachment A.

An access box is defined in the National Fire Protection Association (NFPA) 1: Fire Code, as "an approved secure box, accessible by the Authority Having Jurisdiction (AHJ) master key or control, containing entrance keys or other devices to gain access to a structure or area." The access boxes for the MCBG build-up on Guam will be located and installed at first level main entrances of facilities. Padlocks will be located on entry gates to enclosed fenced areas. The use of access boxes and padlocks frees the fire department from having to maintain and track keys for all of the buildings and gates in their Area of Responsibility (AOR), while allowing them quick and nondestructive entry into the buildings, in emergency situations. Access boxes are also tested to meet UL 1037 - Standard for Antitheft Alarms and Devices, indicating a satisfactory level of security for the building keys.

As noted in the definition, the access boxes and padlocks are all opened using a master key that is held by the AHJ. Marine Corps Activity Guam Fire and Emergency Services (MCAG F&ES) is the AHJ for operational firefighting requirements at the Marine Corps Base Guam. The 36th Civil Engineering Squadron Fire and Emergency Services (36 CES F&ES) is the AHJ for operational firefighting requirements at the Andersen Air Force Base. Naval Base Guam Fire and Emergency Services (NBG F&ES) is the AHJ for operational firefighting requirements at the

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Naval Base Guam. The use of the access box system places a responsibility on the AHJ to protect the master key as it permits access to the various facilities on base.

MCAG F&ES is a new component of the existing Joint Region Marianas Fire and Emergency Services (JRM F&ES). The 36 CES F&ES and NBG F&ES are already part of the JRM F&ES. 36 CES F&ES is established to deal with fires at Andersen Air Force Base and NBG F&ES is established to deal with fires at Naval Base Guam. MCAG F&ES will be established to deal with fires at both the new Marine Corps Base Guam and to take over response to fire emergencies at the adjacent Naval Computer and Telecommunications Station (NCTS) Guam.

MCAG F&ES is the newest component of the JRM F&ES. The various components of JRM have been installing access boxes manufactured by The Knox Company (Knox) for many years, but as the Navy and Air Force components of JRM have their own facility level controls in place. Currently MCAG F&ES, 36 CES F&ES, and NBG F&ES have different master keys for use accessing the Knox Boxes and padlocks in their AORs. The Government needs to provide Knox Boxes to store building entry keys and padlocks for gates that will work with each of the different JRM F&ES's master key. The estimated cost for a Knox Box fire department access box is [REDACTED]. The estimated cost for a padlock is [REDACTED]. The MCBG build-up on Guam will require [REDACTED] for a total estimated cost of [REDACTED].

4. Statutory Authority Permitting Other Than Full and Open Competition:

Statutory authority 10 U.S.C. 2304(c)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

As explained more fully below, award to another source would result in an increased cost to the Government, and the Knox product provides unique features not found in other manufacturers.

The installation of an access box and padlocks is not always required, but in their role as the AHJ for fire department operations, the MCAG, 36 CES, and NBG F&ES can request for their installations. MCAG, 36 CES, and NBG F&ES are currently exercising that power, calling for key access boxes and padlocks on facilities being constructed within their jurisdiction (Marine Corps Base Guam and NCTS Guam, and Andersen Air Force Base). MCAG, 36 CES, and NBG F&ES as the AHJ within their jurisdiction, are also enforcing NFPA 1 for applicable fire department operations issues, which includes installation standards for key access boxes. In accordance with the National Fire Codes®, NFPA 1, the definition of an access box states it is "accessible by the AHJ's master key..." NFPA 1 states that "the access box shall be compatible with an existing rapid-entry access box system in use in the jurisdiction and approved by the AHJ." NFPA 1 also requires the box to be of an approved type listed in accordance with UL 1037 - Standard for Antitheft Alarms and Devices. The Knox Box is a Knox-manufactured UL 1037 compliant access box. MCAG, 36 CES, and NBG F&ES have established accounts separately with the Knox Company. When any F&ES establishes their account, Knox assigns them a unique master key. For security reasons, Knox is the only company that can provide

copies of the master key, and Knox is the only company that can provide key access boxes with compatible locking cores. Knox therefore is the only manufacturer that currently satisfies the NFPA 1 requirements for AHJ approval and compatibility with the AHJ's master key.

As part of their operations MCAG, 36 CES, and NBG F&ES only desire a single master key. Due to security concerns, controlling access to the master key is vital. While some manufacturers will sell just a basic access box, the Knox Box is part of Knox's overall control system to control and track who has access to the master key. JRM F&ES incorporate the Knox system methodology as part of their operational procedures to control access to the keys. When an F&ES establishes an account with Knox, they identify key personnel in their organization who can approve the delivery of the master key to the F&ES. MCAG, 36 CES, and NBG F&ES identified specific personnel who are allowed to authorize Knox to sell a Knox Box or padlock that works with their master key to a Contractor. At the facility level, the master keys are secured in the fire apparatus using an electronic holder that is made to specifically secure a single Knox access key. Once the key blade is inserted into the holder, it is only released by an authorized person entering their unique PIN. This PIN also allows the system to track who has the key. Allowing access boxes and padlocks from different manufacturers will require a different master key for each manufacturer since the keys are made unique for security. Having multiple keys will require additional methods of securing the keys in the fire apparatus, occupying the limited space in the fire apparatus which could be used for other equipment (radios, flashlights, AED, etc.). Access to different keys may require fire fighter personnel to have to keep track of multiple PINs, and management having to keep track of multiple keys. In a fire situation, where response time is vital, having to determine which key to use to enter a building, or confusing which PIN to use could have major consequences. In addition, depending on the fire or emergency situation, first responders from the respective installations may be called upon to provide assistance to each other, making the cost of having different key control systems too high in emergency situations where lives may be in danger. The basic purpose of an access system is to simplify building access, while still maintaining a high level of security. The JRM F&ES has looked at the options and determined that the Knox systems works best for them operationally.

While Marine Corps Base Guam currently does not have any constructed buildings, multiple projects are being readied for construction. The two Bachelor Enlisted Quarters and the Utilities and Site Improvement projects has been authorized to install the first Knox Boxes. These two projects will establish the NFPA 1 requirement of having access boxes compatible with an existing rapid-entry access box system in use in the jurisdiction and approved by the AHJ. When the remaining projects are constructed as part of the MCBG build-up, the access boxes will have to comply with this NFPA 1 requirement, therefore Knox Boxes and padlocks can only be used at Marine Corps Base Guam. Andersen Air Force Base and Naval Base Guam currently have Knox Boxes on their existing building, so future buildings will use Knox access boxes.

Installation of non-Knox Company access boxes will have cost and maintenance implications that will exceed the Government's minimum needs. Marine Corps Base Guam is adjacent to the NCTS Base. JRM will be transferring the responsibility of responding to fires at NCTS to MCAG F&ES, shutting down the existing NCTS/Navy satellite fire station. NCTS has existing Knox Boxes that use the Navy master key. While not covered under this project, ultimately each

of the NCTS Knox Boxes will need to be made compatible with the MCAG F&ES master key. A representative from Knox has confirmed that since the existing access boxes are Knox Boxes, if they are in good condition, just the cores (the locking mechanisms) can be replaced. While the cores on the existing NCTS Knox Boxes could be replaced with cores from another provider, doing so negates the UL 1037 listing of the existing boxes which is an NFPA 1 requirement. Knox cannot guarantee UL1037 compliant performance of the Knox Box once it has been altered using parts from another manufacturer. Since UL 1037 compliance is an NFPA 1 requirement, and in order to satisfy the MCAG F&ES requirement to use a single master key in their AOR, providing access boxes from another manufacturer would also ultimately require the Government to replace the existing access boxes at the NCTS facilities.

The cost for the Knox-supplied core is approximately [REDACTED] while the cost of a complete recessed Knox access box is [REDACTED]. A competitor sells an UL1037 listed access box for [REDACTED]. Based on having to replace [REDACTED] existing Knox access box cores at NCTS, the materials from Knox would only be [REDACTED]. Replacement of the 9 existing Knox boxes with new surface mounted boxes from another manufacturer would cost approximately [REDACTED]. (Note: While the fire department prefers recessed access boxes, most buildings in Guam have a concrete frame. It is possible to chip out the existing building wall, but it must be done with caution as to not impact the structural elements. To be conservative, this analysis assumes surface mounted units will be used for the existing buildings). For both manufacturers you would need to factor in an approximate [REDACTED] shipping cost per item. The new surface mounted access boxes though, would also need to include a [REDACTED] installation cost (based on the RS Means cost to install a steel key keeper), whereas the Knox Box core replacement could be done by the fire fighters. Factoring in shipping and installation the resulting approximate total cost is [REDACTED] vs [REDACTED].

For new access boxes, the fire department wants recess mounted access boxes. The material cost for a Knox Box is more than the competing recessed access box [REDACTED]. Applying an approximate [REDACTED] installation cost and [REDACTED] shipping cost per box, the total cost for each Knox Box would be approximately [REDACTED] versus [REDACTED] for the competitor. The MCBG build-up will install approximately [REDACTED]. For MCBG, each project will only cover the cost of, at most, two new access boxes, plus the NCTS existing box upgrade. Adding the NCTS upgrade costs to the cost for the access box costs associated with each project, Knox is ultimately cheaper at [REDACTED] versus [REDACTED] for competitor.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

In accordance with DFARS 206.302-1, an announcement was published on the Opportunities website on 24 February 2020 for fire department access boxes with equal performance and listing/approval requirements compatibility to the Knox Box. No responses were received in relation to this announcement, therefore, there are no other known manufacturers of access boxes other than Knox that can provide a key system to gain entry into the Knox Box. This market research is being applied to this justification as well.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions taken to remove barriers to competition.

There will be no barriers to competition to evaluate the use of full and open competition for acquiring the same or similar supplies in the future. Market research will be conducted for future projects to ascertain the availability of new technology that may provide for other sources to meet the government's needs. The government will consider, as applicable, should any other potential sources of supply for a compatible product be submitted during the source selection process.

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TECHNICAL AND REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this justification and its supporting Acquisition Plan and which form a basis for this justification are complete and accurate. [FAR 6.303-2(b)]

[REDACTED] [REDACTED]
[REDACTED] [REDACTED] Phone Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient

[REDACTED] [REDACTED] 26 Mar 20
[REDACTED] [REDACTED] Phone Date

CONTRACTING OFFICER CERTIFICATION/APPROVAL

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED] [REDACTED] 26 March 2020
[REDACTED] [REDACTED] Phone Date

APPROVING OFFICIAL (NFAS 6.304)

Upon the basis of the above justification, I hereby approve the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304 (c)(1).

[REDACTED] [REDACTED] 27 March 2020
[REDACTED] [REDACTED] Phone Date

ATTACHMENT A – LIST OF MCBG PROJECTED PROJECTS

	PROJECT TITLE	LOCATION	Knox Box Est Qty	Pad Lock Est Qty